

Tentative Rulings
September 16, 2026
Department S-17
Judge Joseph Ortiz

Tentative Rulings for Department S-17 are posted on the court's website (<https://www.sb-court.org/divisions/civil/civil-tentative-rulings>) at 3:00 p.m. or at 7:00 p.m. the court day before the hearing. If no tentative ruling is posted at 3:00 p.m., please check again after 7:00 p.m.

Unless you wish to submit on the tentative ruling, you must appear for the hearing either in person, CourtCall (888-882-6878 or www.courtcall.com), or by ZOOM. Failure to appear is deemed a waiver of oral argument. If you wish to submit to the tentative, please call the Judicial Assistant at (909) 708-8715 in advance of the hearing. If all parties submit on a tentative ruling, it will become final. The tentative ruling may seek input on particular issues and direct appearance. If so directed, attendance at the hearing is mandatory. The party prevailing on a motion or other hearing shall serve written notice of the court's ruling unless all parties waive notice of the ruling.

ATTENTION: Since January 9, 2023, the court no longer provides an official Court Reporter to transcribe proceedings. Parties who wish to have a transcript must retain their own private reporter and must submit a "Stipulation and Order to Use Certified Shorthand Reporter." Please contact the Department if you need this form. Prior to the hearing, you can email the completed Stipulation to Department S-17 at jgarcez@sb-court.org. Parties who do not retain their own reporter have waived the right to one.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

17. *City of Needles v. Rivera, et al*, Case No. CIVSB2022575
Plaintiff City's Motion for Attorneys' Fees and Costs
9/16/26, 9:00 a.m., Dept. S-17

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The Court would **CONTINUE** to allow movant to submit a declaration that includes a breakdown of attorney work and billed fees for that work. The Court cannot assess the reasonableness of the proposed attorneys' fees without such a review.

Case Summary

On February 17, 2020, the Plaintiff City filed this action against Defendants John and Linda Rivera for violation of the Needles Municipal Code and the California Health and Safety Code. In essence, violations relate to cultivation restrictions on medical marijuana. Previously, a total of 91 cannabis plants were found at the subject property, and Defendants do not have a license to operate a cultivation facilities or marijuana business, nor do they have the permits necessary for such cultivation.

Relevant here, Plaintiff City prevailed at trial on July 27, 2026. Judgement was entered for Plaintiff on August 26, 2026, in the amount of \$41,800. This motion for attorneys' fees and costs followed.

Summary of the Law

Attorneys' fees are recoverable as costs when authorized by contract, statute, or law. (Code Civ. Proc., § 1033.5(a)(10).) "Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding." (Code Civ. Proc., § 1032(b).) The reasonableness of attorneys' fees is within the discretion of the trial court. (*Wilkerson v. Sullivan* (2002) 99 Cal.App.4th 443, 448.)

Analysis

Relevant here, the City indicates that the relevant municipal code indicates that "the city is entitled to recover its attorneys' fees and costs from opposing parties whenever it is the prevailing party in an adversarial legal proceeding regarding a municipal affair." (See Needles Muni. Code, Chpt. 12A-25 [Enforcement], 1-12 [Recovery of Attorneys' Fees and Costs]; & 2A-11 [Collection of Fines].) After assessing the *availability* of attorneys' fees, the Court must assess the *reasonableness* of the requested fees and costs.

Here, the requested \$77,409.80 in attorneys' fees and \$3,451.27 in costs are ostensibly supported by a declaration and exhibits. (See Nolan Decl., ¶¶10-16, Exhs. C-D.) However, while the proposed attorney rates appear reasonable, the supporting declaration *fails* to provide any breakdown of the actual attorney work performed by each billing attorney. (See Nolan Decl., ¶13 [rates].) Importantly, the assessment also appears to conflate staff time with costs and/or attorneys' fees. The Court cannot assess the reasonableness of the proposed attorneys' fees without an assessment of the work performed by each billing attorney, and it would therefore continue the matter to allow the filing of a supplemental declaration with that information.

19. *McRae v. Triton Global Services, Inc., et al*, Case No. CIVSB2509611
Plaintiff's Motion for Reconsideration of Ruling dated May 13, 2026
9/16/26, 9:00 a.m., Dept. S-17

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The Court would **DENY**.

Case Summary

This is, essentially, a workplace discrimination case with added wage-and-hour claims. Plaintiff alleges that Defendant employed him as a dispatcher. Plaintiff is a homosexual male who suffers from Attention Deficit and Hyperactivity Disorder (ADHD) and Asperger's Syndrome. During the course of his employment, he alleges that he was subjected to discriminatory and harassing behavior directed at him on account of his disability, sexual orientation, and religious beliefs. More specifically, he alleges that Boulware would listen to sermons on the radio that would play sermons, preaching that homosexuals were possessed by demons, and that he was micromanaged and bullied. He further asserts that, after reporting the behavior, the response was ineffectual, and that he was told that he needed to stop mistreating Boulware. Further, on July 8, 2021, he was given a performance review that indicated that he was distracted – a comment he felt attacked his ADHD. Ultimately, on July 26, 2021, he was asked whether he took pictures of Boulware, which he admitted he did to validate his complaints. He was thereafter suspended indefinitely and eventually his employment was terminated on August 3, 2021, following a purported investigation.

On May 27, 2025, Plaintiff filed this instant First Amended Complaint, alleging 24 causes of action for (1) disability discrimination; (2) disability harassment; (3) failure to accommodate; (4) failure to engage in the interactive process; (5) religious discrimination; (6) religious harassment; (7) failure to accommodate religious practice; (8) failure to engage in the interactive process to accommodate religious practice; (9) gender-based discrimination; (10) race discrimination; (11) orientation discrimination; (12) civil rights violations; (13) failure to prevent, correct, and remedy discrimination and harassment; (14) retaliation; (15) failure to conduct a proper workplace investigation; (16) failure to pay wages; (17) failure to provide meal/ rest breaks; (18) failure to provide itemized and accurate wage statements; (19) waiting time penalties; (20) failure to pay accrued vacation time; (21) violation of the unfair competition law (UCL); (22) wrongful termination; (23) intentional infliction of emotional distress; and (24) negligent infliction of emotional distress. Importantly, on August 25, 2025, the Court sustained a demurrer without leave on the 1-10th, 12th, 15th, & 23-24th causes.

Relevant here, on September 15, 2025, Plaintiff filed a motion to compel further production of documents, which Defendant Triton opposed. On May 13, 2026, the Court heard the motion and denied requests 1, 3, 5, and 7-9 but granted as to requests 2, 4, and 6. This motion to reconsider that ruling followed.

Summary of the Law

"Section 1008, subdivision (a) requires that a motion for reconsideration be based on new or different facts, circumstances, or law. A party seeking reconsideration also must provide a satisfactory explanation for the failure to produce the evidence at an earlier time." (*New York Times Co. v. Superior Court* (2005) 135 Cal.App.4th 206, 212.) "The burden under section 1008 is comparable to that of a party

seeking a new trial on the ground of newly discovered evidence: the information must be such that the moving party could not, with reasonable diligence, have discovered or produced it at the trial.” (Id., at pp. 212-213.) A motion for reconsideration is properly denied if based on evidence that could have been presented in connection with the original motion. (*Morris v. AGFA Corp.* (2006) 144 Cal.App.4th 1452, 1460; *Hennigan v. White* (2011) 199 Cal.App.4th 395, 406.)

Analysis

As a preliminary matter, the Court finds that Plaintiff’s motion fails to comply with the statutory requirement to include an affidavit that identifies the previous order; the judge that made the order; and the new or different facts, circumstances, or law that warrants the requested reconsideration. (Code Civ. Proc., § 1008(a); see also *Branner v. Regents of University of California* (2009) 175 Cal.App.4th 1043, 1048.) This is an independent basis to deny the motion.

Even in the alternative, however, the motion fails: As support for reconsideration, the motion points to “the factual amount of witnesses demanded”; emails between Plaintiff and SilverTrac, Jacob Keef, and defense counsel; and the Appellate Court’s clarification that there are currently no dismissed parties. (Mtn., 9:16-19.)

First, Plaintiff’s contention as to the “factual amount of witnesses demanded” is improperly vague and unexplained. Second, the Appellate Court’s clarification that there are no dismissed parties references the Court of Appeal’s assessment that no judgment of dismissal has been entered by the court; instead, there was only a ruling sustaining a demurrer. This is *not* a new fact, as the court is aware of its own rulings. Third, as to the emails between Plaintiff and SilverTrac, Jacob Keef, and defense counsel, Plaintiff fails to offer a valid reason for not offering these earlier. (*Gilberd v. AC Transit* (1995) 32 Cal.App.4th 1494, 1500 [moving party must offer some fact, law, or circumstance not previously considered and some valid reason for not offering it earlier].) In any event, Plaintiff never articulates why the information in these emails would merit reconsideration of the court’s prior order or have any impact on the ruling whatsoever.

Finally, it is worth noting that Plaintiff spends a *substantial* percentage of his motion and reply attacking the Defendants, Defense counsel, as well as the Court itself. He asserts perjury, misrepresentation, and fraud on the part of Defendants and their counsel. (See, e.g., Mtn., 16:17-17:20 [arguments alleging “perjury”]; also Reply, 8:17-9 [arguments re “fraud”].) He also, without basis, asserts judicial malfeasance and incompetence. (See, e.g., Mtn., Reply, 9:3-4 [asserting the Court “abetted” Defense] & 9:18-10:4 [variously arguing that the Court does not read arguments].) Certainly, the time spent on these unsupported attacks imply that Plaintiff’s true motivation is actually his visceral unhappiness with the ruling. That is *not* a basis for reconsideration.
